

{{AGENCY_NAME}}

{{AGENCY_ADDRESS}} | {{AGENCY_CITY}}, {{AGENCY_STATE}} {{AGENCY_ZIP}}

Phone: {{AGENCY_PHONE}} | Email: {{AGENCY_EMAIL}} | License #: {{AGENCY_LICENSE_NUMBER}}

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This Agreement is between {{AGENCY_NAME}} ("Agency") and {{EMPLOYEE_NAME}} ("Employee") and is effective as of {{EFFECTIVE_DATE}}.

1. Confidential Information

"Confidential Information" means any non-public information Employee receives or generates in connection with employment, including, without limitation: client and family identities; protected health information (PHI); plans of care; medication lists; financial and billing data; staffing schedules; pricing; trade secrets; software; passwords; vendor agreements; and personnel records.

2. HIPAA Obligations

Employee agrees to comply with the Health Insurance Portability and Accountability Act of 1996 (HIPAA), the HITECH Act, and Agency's Notice of Privacy Practices and policies. Employee will only access PHI on a need-to-know basis to perform job duties and will not disclose PHI to unauthorized persons under any circumstance.

3. Non-Use and Non-Disclosure

Employee will (a) hold all Confidential Information in strict confidence, (b) not use Confidential Information for any purpose other than performing duties for the Agency, and (c) not disclose Confidential Information to any third party without prior written authorization from the Agency.

4. No Photography or Recording

Employee will not photograph, video, or audio-record clients, family members, the home environment, or Agency materials without explicit written authorization from the Agency and, where required, the client.

5. Social Media and Public Communications

Employee will not post any client information, photos, complaints, or details about Agency operations on social media or any public forum. Personal posts that identify or could reasonably identify a client are strictly prohibited.

6. Return of Materials

Upon termination of employment for any reason, Employee will immediately return all Agency property, including documents, devices, keys, uniforms, ID badges, and any copies of Confidential Information.

7. Survival

Employee's obligations under this Agreement survive termination of employment indefinitely as to trade secrets and PHI, and for {{NDA_SURVIVAL_YEARS}} years as to other Confidential Information.

8. Remedies

Employee acknowledges that breach of this Agreement may cause irreparable harm and that the Agency is entitled to seek injunctive relief in addition to any other remedies, including under HIPAA, state privacy laws, and trade-secret statutes.

9. Governing Law

This Agreement is governed by the laws of the State of {{AGENCY_STATE}}.

Employee Signature: _____ Date: _____

Printed Name: _____

Agency Representative: _____ Date: _____